

STATE OF NEW YORK

10331--B

IN ASSEMBLY

February 20, 2026

Introduced by M. of A. ANDERSON -- read once and referred to the Committee on Governmental Operations -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the executive law, in relation to enacting the "Census Enumerator Navigation Safety for Unimpeded Surveying Act"

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. This act shall be known and may be cited as the "Census
2 Enumerator Navigation Safety for Unimpeded Surveying Act".

3 § 2. The executive law is amended by adding a new section 170-k to
4 read as follows:

5 § 170-k. Census enumerator access. 1. During an official enumeration
6 period established by the United States Census Bureau, enumerators who
7 present valid federal-issued or state-issued credentials shall be
8 afforded reasonable access to common areas of multi-unit residential
9 buildings for the purpose of conducting authorized census activities.
10 Such access shall be granted during the days and hours enumerators are
11 authorized to make in-person inquiries for the purposes of collecting
12 census information.

13 2. (a) The department of state shall prepare and issue guidance to
14 building owners, managing agents, and building staff regarding recogni-
15 tion of valid enumerator credentials. Such guidance shall also be made
16 available to the public on the website of the department of state and in
17 written form upon request.

18 (b) To the extent not in violation of federal law, the department of
19 state shall develop a voluntary state-issued verification resource or
20 training materials to assist building staff in identifying authorized
21 enumerators and reducing confusion during enumeration periods.

22 3. The attorney general shall bring an action in a court of competent
23 jurisdiction to enforce the provisions of this section and to obtain
24 injunctive relief, declaratory relief, or any other appropriate equita-
25 ble relief necessary to ensure compliance.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD14733-04-6

1 4. Nothing in this section shall be construed to conflict with, limit
2 or preempt federal census law or to authorize entry into individual
3 dwelling units without consent.

4 § 3. Severability. If any clause, sentence, paragraph, subdivision,
5 section or part of this act shall be adjudged by any court of competent
6 jurisdiction to be invalid, such judgment shall not affect, impair, or
7 invalidate the remainder thereof, but shall be confined in its operation
8 to the clause, sentence, paragraph, subdivision, section or part thereof
9 directly involved in the controversy in which such judgment shall have
10 been rendered. It is hereby declared to be the intent of the legislature
11 that this act would have been enacted even if such invalid provisions
12 had not been included herein.

13 § 4. This act shall take effect immediately.